

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
TYISHA TAYLOR,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, and NEW YORK CITY
POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield
No. 272,Plaintiff designates Bronx
County as the place of trial.Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 8, 2022

Yours, etc.



CAITLIN ROBIN, ESQ.

CAITLIN ROBIN AND ASSOCIATES PLLC

Attorneys for Plaintiff

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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272,
NYPD Intel Criminal Section, 88 10th Avenue, Floor 3, New York, NY 10011

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

TYISHA TAYLOR,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, and NEW YORK CITY
POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield
No. 272,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff TYISHA TAYLOR, by her attorneys, Caitlin Robin & Associates, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the common law and the laws of the State of New York. On March 9, 2022, at approximately 3:30 p.m., plaintiff TYISHA TAYLOR, while lawfully inside her place of employment at Morris Park Rehabilitation and Nursing Center ("Morris Park"), 1235 Pelham Parkway North in Bronx, New York, was subject to defamation of character by NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272. In addition, Plaintiff was subjected to negligence and intentional infliction of emotional distress by the defendant Officer, causing Plaintiff to suffer both mental and emotional injuries and putting her job in jeopardy. The City is liable as the employer of the defendant officer for negligent hiring, retention, training, and supervision practices. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully defamed the plaintiff in violation of the common law and the laws of the State of New York.

PARTIES

2. Plaintiff TYISHA TAYLOR is a resident of the state of New York, with a primary residence of 953 B East 217th Street in Bronx, NY 10469.

3. Currently and at all times herein, Plaintiff was employed as Director of Nutrition at Morris Park Rehabilitation and Nursing Center ("Morris Park"), located at 1235 Pelham Parkway North in Bronx, NY 10469.

4. NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, was at all times relevant herein, assigned to the NYPD Intel Criminal Section.

6. NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, is being sued in his individual and official capacity.

7. At all times relevant herein, the individual defendant(s) were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

9. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

10. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 13, 2022.

11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On March 9, 2022, at approximately 3:30 P.M., Plaintiff was lawfully present at 1235 Pelham Parkway North in Bronx, New York ("Morris Park"), when the Defendant Police Detective defamed Plaintiff without probable cause or legal justification.

15. In the past, the plaintiff owned a bar called Karma Lounge, and during and up until the time she sold the bar, had several interactions with Detective Escudero in which he would harass both her and her patrons.

16. Detective Escudero had also interacted with and harassed the Plaintiff's son, and had in his official capacity interrogated him and accused him of Criminal Possession of a Weapon as well as Criminal Possession of a Controlled Substance. These charges were falsely made and the District Attorney's Office declined to prosecute the plaintiff's son.

17. Detective Escudero, currently and at all times relevant herein, has a mother who is and was a resident at Morris Park.

18. On the day of the relevant incident, the Plaintiff was working at Morris Park when she observed Defendant Detective Escudero speaking behind closed doors with her Administrator as well as her Human Resources Director.

19. A short time thereafter, the plaintiff was told by a nurse with whom she works that the Defendant had spoken badly to her of the Plaintiff, specifically; "(she) has a bad reputation, she owned a bar and her son was arrested for guns," "they have guns," "(she's) a nasty person and an even nastier drunk," and "(I'm) not comfortable with her working here."

20. Plaintiff has no prior criminal record, and neither she nor her son were ever convicted of the crimes alleged by the defendant.

21. The following day, the Plaintiff's Administrator and Human Resources Director confirmed that Defendant Detective Escudero had made the same false statements about the plaintiff to them, and that the defendant further stated, "I want her to stay away from my mother."

22. The plaintiff's employers at Morris Park thereafter ran a background check on the plaintiff to see if any of Detective Escudero's claims were true; no further action was taken, as the results proved the plaintiff has a clean record, but the Plaintiff was asked not to interact with the defendant's mother.

23. A few days after this incident, the defendant was again at Morris Park to visit his mother and asked the same nurse in reference to the plaintiff, "she's still here?"

24. The plaintiff thereafter suffered severe anxiety over her job security, and has since seen a therapist to help sort through the mental and emotional toll caused by Detective Escudero's false statements against her.

25. The unlawful defamation and negligent and intentional infliction of emotional distress by the individually named defendant caused Plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION
Defamation of Character

26. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.

27. Defendant, NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, provided false information about the plaintiff to her employer and co-workers without any legal justification or justifiable grounds.

28. Specifically, the defendant made slanderous statements to Plaintiff's employer that she was lacking in character, violent, and could pose a threat or danger to the residents with whom she closely worked.

29. After the defendant relayed this false and misleading information to Plaintiff's employer, the plaintiff's job was put in jeopardy, she was put in fear for her livelihood and well-being, and she suffered humiliation, loss of respect from her peers, and diminished reputation in her workplace, as well as anxiety and mental and emotional distress.

30. The propagation of these false and misleading claims constitute clear defamation of character inflicted upon the plaintiff by the defendant officer.

31. The defendant officer made these statements in the course of his employment by the City of New York, who are therefore vicariously liable for his actions.

32. As a direct and proximate result of such acts, the defendant deprived Plaintiff of her rights under the laws of the State of New York.

33. As a result of the aforementioned conduct of the defendant, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
Negligence

34. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. Defendant owed a duty of care to Plaintiff.

36. To the extent defendant claims that the injuries to Plaintiff by the defendant police officer were unintentionally caused and that the harm caused by the defendant against her was unintentional, then the defendant breached that duty of care by spreading false information to Plaintiff's employer and co-workers about her and her family.

37. As a direct and proximate result of such acts, the defendant deprived Plaintiff of her rights under the laws of the State of New York.

38. All of the foregoing occurred without any fault or provocation by Plaintiff.

39. The defendant officer made these statements in the course of his employment by the City of New York, who are therefore vicariously liable for his actions.

40. As a result of the aforementioned conduct of the defendant, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION
Negligent Infliction of Emotional Distress

41. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. By the actions described herein, defendant, NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, TYISHA TAYLOR.

43. The acts and conduct of the defendant were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

44. The defendant officer made these statements in the course of his employment by the City of New York, who are therefore vicariously liable for his actions.

45. As a direct and proximate result of such acts, the defendant deprived Plaintiff of her rights under the laws of the State of New York.

46. As a result of the aforementioned conduct of the defendant, Plaintiff's job was put in jeopardy, she was put in fear for her livelihood and well-being, and she sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

47. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. By the actions described herein, defendant NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to the Plaintiff.

49. Upon information and belief, the defendant was negligent, careless, and/or reckless when he defamed the Plaintiff resulting in intended serious and permanent mental and emotional injuries.

50. The acts and conduct of the defendant were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

51. The defendant officer made these statements in the course of his employment by the City of New York, who are therefore vicariously liable for his actions.

52. As a direct and proximate result of such acts, the defendant deprived Plaintiff of her rights under the laws of the State of New York.

53. As a result of the aforementioned conduct of the defendant, Plaintiff's job was put in jeopardy, she was put in fear for her livelihood and well-being, and she sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

54. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendant, NEW YORK CITY POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, an individual who was unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

56. The defendant officer made these statements in the course of his employment by the City of New York, who are therefore vicariously liable for his actions.

57. As a result of the aforementioned conduct of defendants, Plaintiff's job was put in jeopardy, she was put in fear for her livelihood and well-being, and she sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

58. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff TYISHA TAYLOR demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 8, 2022

By: 
CAITLIN ROBIN, ESQ.
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

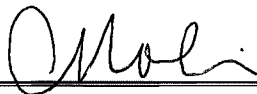
NYPD POLICE DETECTIVE MATTHEW J. ESCUDERO, Shield No. 272, NYPD Intel Criminal Section; 88 10th Avenue, Fl. 3, New York, NY 10011

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 8, 2022



CAITLIN ROBIN